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SAMSUNG ELECTRONICS AMERICA, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	Docket No. 23-01
	)	
SM LINE CORPORATION	)	
	)	
Respondent.	)	
	)	

I, Allison N. Skopec, hereby declare as follows:

1. I am an attorney at Holland & Knight LLP (“H&K”), counsel for Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) in the above-captioned matter.

2. I am a member in good standing of the Bar of the State of New York and have filed an appearance in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. On October 22, 2024, the SeaLead Subpoena was served via process server at 3:56 PST at 4040 Civic Center Drive, San Rafael, California 94903 on the Regus office secretary, Jabari La Chaux. Neil Ekstrand, SeaLead's registered agent, was not available at the building at the time of service. **Exhibit No. 1** attached to Complainant's Motion is a true and correct copy of the Proof of Service.

5. On October 23, 2024, I served the SeaLead Subpoena on several email addresses, including, “sealeadexports@sea-lead.com,” “sealeadimports@sea-lead.com,” “mark.lee@sea-

lead.com,” and “Jacqueline.jewll@sea-lead.com,” as well as SM Line counsel. **Exhibit No. 2** attached to Complainant’s Motion is a true and correct copy of the relayed receipt related to the October 23, 2024 Email. **Exhibit No. 3** is a true and correct copy of the relayed receipt to SM Line Corporation counsel related to the October 23, 2024 email.

6. On October 24, 2024, Ms. Pauline Peoples, Senior Manager of SeaLead forwarded my October 23, 2024 email containing the SeaLead Subpoena to the SeaLead management team, including Mr. Lee. **Exhibit No. 4** attached to Complainant’s Motion is a true and correct copy of the October 24, 2024 email.

7. On October 25, 2024, the SeaLead Subpoena was received via Fedex and signed for by the Regus office secretary. **Exhibit No. 5** attached to Complainant’s Motion is a true and correct copy of the proof of delivery of the Fedex package containing the SeaLead Subpoena.

8. SeaLead has not responded to its Subpoena. The November 4, 2024, deadline to produce documents and the November 11, 2024, deadline to produce a deponent passed with no response. On November 12, 2024, SEA sent a letter to SeaLead noting these violations of the Subpoena and reserving its rights.

9. On October 27, 2024, Mr. Lee responded to my October 23, 2024 email, stating that he currently lives in South Korea, and in subsequent emails that he will not be in the United States again until early 2025.

10. Following emails to and from Mr. Lee and SEA counsel, with SM Line counsel copied, an agreement was reached between Mr. Lee and SEA counsel on November 12, 2024, with a deposition date of November 26, 2024 *via* Zoom at 8 AM EST/10 PM KST.

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: November 13, 2024

/s/ Allison N. Skopec
Allison N. Skopec